

HOUSE JOINT RESOLUTION 94

By Dixie

A RESOLUTION to propose an amendment to revise provisions in Article II regarding the creation of legislative districts.

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article II of the Constitution of Tennessee be amended by deleting Sections 4, 5, 5a, 6, and 6a, and substituting instead the following:

Sec. 4. Number of representatives – Apportionment.

The number of Representatives shall be ninety-nine and shall be apportioned among the several counties or districts substantially according to population. Counties having two or more Representatives shall be divided into separate districts. In a district composed of two or more counties, each county shall adjoin at least one other county of such district, and a county shall not be divided more than once in forming such a district. Each district shall be represented by a qualified voter of that district.

Sec. 5. Number of senators – Apportionment.

The number of Senators shall be apportioned among the several counties or districts substantially according to population, and shall not exceed one-third the number of Representatives. Counties having two or more Senators shall be divided into separate districts. In a district composed of two or more counties, each county shall adjoin at least one other county of such district, and a county shall not be divided more than once in forming such a district. Each district must be represented by a qualified voter of that district.

Sec. 6a. Independent redistricting commission – Establishment and commissioner qualifications.

An independent redistricting commission for state legislative and congressional districts is hereby established as a permanent commission in the legislative branch. The commission shall consist of thirteen commissioners. The commission shall adopt a redistricting plan for each of the following types of districts: state senate districts, state house of representatives districts, and congressional districts. Each commissioner must:

- (a) Be registered and eligible to vote in the State of Tennessee;
- (b) Not currently be or in the past six years have been any of the following:
 - (1) A declared candidate for partisan federal, state, or local office;
 - (2) An elected official to partisan federal, state, or local office;
 - (3) An officer or member of the governing body of a national, state, or local political party;
 - (4) A paid consultant or employee of a federal, state, or local elected official or political candidate; of a federal, state, or local political candidate's campaign; or of a political action committee;
 - (5) An employee of the legislature;
 - (6) A person who is registered as a lobbyist with the Tennessee ethics commission, or its successor agency, or any employee of such person; or
 - (7) A state employee in an executive service position;
- (c) Not be a parent, stepparent, child, stepchild, or spouse of any individual disqualified under subsection (b); or
- (d) Not be otherwise disqualified for appointed or elected office by this constitution.

For five years after the date of appointment, a commissioner is ineligible to hold a partisan state or local elective office in this state.

Sec. 6b. Independent redistricting commission – Application and selection process.

Commissioners shall be selected through the following process:

(a) The secretary of state shall:

(1) Make applications for commissioner available to the general public not later than January 1 of the year of the federal decennial census. The secretary of state shall circulate the applications in a manner that invites wide public participation from different regions of the state. The secretary of state shall also mail applications for commissioner to ten thousand Tennessee registered voters, selected at random, by January 1 of the year of the federal decennial census;

(2) Require applicants to provide a completed application; and

(3) Require applicants to attest under oath that they meet the qualifications set forth in Article II, Section 6a and either that they affiliate with one of the two major political parties with the largest representation in the legislature, and if so, identify the party with which they affiliate, or that they do not affiliate with either of the major parties.

(b) Subject to subsection (c), the secretary of state shall mail additional applications for commissioner to Tennessee registered voters selected at random until at least thirty qualifying applicants that affiliate with one of the two major parties have submitted applications, at least thirty qualifying applicants that identify that they affiliate with the other of the two major parties have submitted applications, and at least forty qualifying applicants that identify that they do not affiliate with either of the two major parties have submitted applications, each in response to the mailings.

(c) The secretary of state shall accept applications for commissioner until June 1 of the year of the federal decennial census.

(d) By July 1 of the year of the federal decennial census, from all of the applications submitted, the secretary of state shall:

(1) Eliminate incomplete applications and applications of applicants who do not meet the qualifications in Article II, Section 6a based solely on the information contained in the applications;

(2) Randomly select sixty applicants from each pool of affiliating applicants and eighty applicants from the pool of non-affiliating applicants, and fifty percent of each pool shall be populated from the qualifying applicants to such pool who returned an application mailed pursuant to subsection (a) or (b); provided, that if fewer than thirty qualifying applicants affiliated with a major party or fewer than forty qualifying non-affiliating applicants have applied to serve on the commission in response to the random mailing, the balance of the pool shall be populated from the balance of qualifying applicants to that pool. The random selection process used by the secretary of state to fill the selection pools must use accepted statistical weighting methods to ensure that the pools, as closely as possible, mirror the geographic and demographic makeup of the state; and

(3) Submit the randomly selected applications to the speaker of the senate and the minority leader of the senate, and the speaker of the house of representatives and the minority leader of the house of representatives.

(e) By August 1 of the year of the federal decennial census, the speaker of the senate, the minority leader of the senate, the speaker of the house of representatives, and the minority leader of the house of representatives may each strike up to five applicants from any pool or pools.

(f) By September 1 of the year of the federal decennial census, the secretary of state shall randomly draw the names of four commissioners from each of the two pools of remaining applicants affiliating with a major party, and five commissioners from the pool of remaining non-affiliating applicants.

Sec. 6c. Independent redistricting commission – Terms and vacancies.

Except as provided below, commissioners shall hold office for a term that expires once the commission has completed the commission's obligations for a census cycle but not before any judicial review of the redistricting plan is complete. If a commissioner's seat becomes vacant for any reason, then the secretary of state shall fill the vacancy by randomly drawing a name from the remaining qualifying applicants in the selection pool from which the original commissioner was selected. A commissioner's office becomes vacant upon the occurrence of any of the following:

- (a) Death or mental incapacity of the commissioner;
- (b) The secretary of state's receipt of the commissioner's written resignation;
- (c) The commissioner is, or was within the immediately preceding twenty years, convicted of a felony involving dishonesty, deceit, fraud, or a breach of the public trust and the conviction is or was related to the person's official capacity while the person was holding any elective office or position of employment in local, state, or federal government;
- (d) The commissioner ceases to be qualified to serve as a commissioner under Article II, Section 6a; or
- (e) After written notice and an opportunity for the commissioner to respond, a vote of ten of the commissioners finding substantial neglect of duty, gross misconduct in office, or inability to discharge the duties of office.

Sec. 6d. Independent redistricting commission – Administration and funding.

The secretary of state shall be secretary of the commission without vote, and in that capacity shall furnish, under the direction of the commission, all technical services that the commission deems necessary. The commission shall elect its own chairperson. The commission has the sole power to make its own rules of procedure. The commission shall have procurement and contracting authority and may hire staff and consultants for the purposes of this section, including legal representation.

Beginning no later than July 1 of the year preceding the federal decennial census, and continuing each year in which the commission operates, the legislature shall appropriate funds sufficient to compensate the commissioners and to enable the commission to carry out its functions, operations, and activities, which activities include retaining independent, nonpartisan subject-matter experts and legal counsel, conducting hearings, publishing notices, and maintaining a record of the commission's proceedings, and any other activity necessary for the commission to conduct its business, at an amount equal to not less than twenty-five percent of the general fund budget for the secretary of state for that fiscal year. Within six months after the conclusion of each fiscal year, the commission shall return to the state treasury all moneys unexpended for that fiscal year. The commission shall furnish reports of expenditures, at least annually, to the governor and the legislature and shall be subject to annual audit as provided by law. Each commissioner shall receive compensation at least equal to twenty-five percent of the governor's salary. The State of Tennessee shall indemnify commissioners for costs incurred if the legislature does not appropriate sufficient funds to cover such costs.

The commission shall have legal standing to prosecute an action regarding the adequacy of resources provided for the operation of the commission, and to defend any action regarding an adopted plan. The commission shall inform the legislature if the commission determines that funds or other resources provided for operation of the commission are not

adequate. The legislature shall provide adequate funding to allow any action regarding an adopted plan to be defended.

Sec. 6e. Independent redistricting commission – Meetings and plan development.

The secretary of state shall convene the commission by October 15 in the year of the federal decennial census. Not later than November 1 in the year immediately following the federal decennial census, the commission shall adopt a redistricting plan for each of the following types of districts: state senate districts, state house of representatives districts, and congressional districts.

Before commissioners draft any plan, the commission shall hold at least ten public hearings throughout the state for the purpose of informing the public about the redistricting process and the purpose and responsibilities of the commission and soliciting information from the public about potential plans. The commission shall accept for consideration written submissions of proposed redistricting plans and any supporting materials, including underlying data, from any member of the public. These written submissions are public records.

After developing at least one proposed redistricting plan for each type of district, the commission shall publish the proposed redistricting plans and any data and supporting materials used to develop the plans. Each commissioner may only propose one redistricting plan for each type of district. The commission shall hold at least five public hearings throughout the state for the purpose of soliciting comments from the public about the proposed plans. Each of the proposed plans shall include such census data as is necessary to accurately describe the plan and verify the population of each district, and a map and legal description that include the political subdivisions, such as counties and municipalities; man-made features, such as streets, roads, highways, and railroads; and natural features, such as waterways, which form the boundaries of the districts.

Each commissioner shall perform their duties in a manner that is impartial and reinforces public confidence in the integrity of the redistricting process. The commission shall conduct all of its business at open meetings. Nine commissioners, including at least one commissioner from each selection pool constitute a quorum, and all meetings require a quorum. The commission shall provide advance public notice of its meetings and hearings. The commission shall conduct its hearings in a manner that invites wide public participation throughout the state. The commission shall use technology to provide contemporaneous public observation and meaningful public participation in the redistricting process during all meetings and hearings.

The commission, and the commission's members, staff, attorneys, and consultants, shall not discuss redistricting matters with members of the public outside of an open meeting of the commission, except that a commissioner may communicate about redistricting matters with members of the public to gain information relevant to the performance of the commissioner's duties if such communication occurs in writing or at a previously publicly noticed forum or town hall open to the general public.

The commission, and the commission's members, staff, attorneys, experts, and consultants, may not directly or indirectly solicit or accept any gift or loan of money, goods, services, or other thing of value greater than twenty dollars for the benefit of any person or organization, which may influence the manner in which the commissioner, staff, attorney, expert, or consultant performs their duties.

Sec. 6f. Independent redistricting commission – Decisions.

Except as provided in Article II, Section 6h, a final decision of the commission requires the concurrence of a majority of the commissioners. A decision on the dismissal or retention of paid staff or consultants requires the vote of at least one commissioner affiliating with each of the major parties and one non-affiliating commissioner. All decisions of the commission shall be

recorded, and the record of the commission's decisions must be readily available to any member of the public without charge.

Sec. 6g. Independent redistricting commission – Criteria for district plans.

The commission shall abide by the following criteria in proposing and adopting each plan, in order of priority:

(a) Districts must be of equal population, or substantially equal population, as mandated by the United States constitution, and shall comply with the voting rights act and other federal laws;

(b) Districts must be geographically contiguous. Island areas are considered to be contiguous by land to the county of which they are a part;

(c) Districts must reflect consideration of county and municipal boundaries;

(d) Districts must be reasonably compact;

(e) Districts must reflect the state's diverse population and communities of interest. Communities of interest may include, but are not limited to, populations that share cultural or historical characteristics or economic interests. Communities of interest do not include relationships with political parties, incumbents, or political candidates;

(f) Districts shall not provide a disproportionate advantage to any political party, which is to be determined using accepted measures of partisan fairness; and

(g) Districts shall not favor or disfavor an incumbent elected official or a candidate.

Sec. 6h. Independent redistricting commission – Plan adoption procedure.

The commission shall follow the following procedure in adopting a plan:

(a) Before voting to adopt a plan, the commission shall ensure that the plan is tested, using appropriate technology, for compliance with the criteria described in Article II, Section 6g;

(b) Before voting to adopt a plan, the commission shall provide public notice of each plan that will be voted on and provide at least forty-five days for public comment on the proposed plan or plans. Each plan that will be voted on shall include such census data as is necessary to accurately describe the plan and verify the population of each district, and shall include the map and legal description required in Article II, Section 6i; and

(c) A final decision of the commission to adopt a redistricting plan requires a majority vote of the commission, including at least two commissioners who affiliate with each major party, and at least two commissioners who do not affiliate with either major party. If no plan satisfies this requirement for a type of district, then the commission shall use the following procedure to adopt a plan for that type of district:

(1) Each commissioner may submit one proposed plan for each type of district to the full commission for consideration;

(2) Each commissioner shall rank the plans submitted according to preference. Each plan shall be assigned a point value inverse to its ranking among the number of choices, giving the lowest ranked plan one point and the highest ranked plan a point value equal to the number of plans submitted; and

(3) The commission shall adopt the plan receiving the highest total points, that is also ranked among the top half of plans by at least two commissioners not affiliated with the party of the commissioner submitting the plan, or in the case of a plan submitted by non-affiliated commissioners, is ranked among the top half of plans by at least two commissioners affiliated with a major party. If plans are tied for the highest point total, then the secretary of state shall randomly select the final plan from those plans. If no plan meets the requirements of this subdivision (c)(3), then the secretary of state shall randomly

select the final plan from among all submitted plans pursuant to subdivision (c)(1).

Sec. 6i. Independent redistricting commission – Plan publication, reporting, and effective date.

Within thirty days after adopting a plan, the commission shall publish the plan and the material reports, reference materials, and data used in drawing it, including any programming information used to produce and test the plan. The materials must be published in such a manner that an independent person is able to replicate the conclusion without any modification of any of the published materials.

For each adopted plan, the commission shall issue a report that explains the basis on which the commission made its decisions in achieving compliance with plan requirements and shall include the map and legal description required in Article II, Section 6e. A commissioner who votes against a redistricting plan may submit a dissenting report to be issued with the commission's report.

An adopted redistricting plan becomes law sixty days after its publication. The secretary of state shall keep a public record of all proceedings of the commission and shall publish and distribute each plan and required documentation.

Sec. 6j. Independent redistricting commission – Judicial review and severability.

The supreme court, in the exercise of original jurisdiction, shall direct the secretary of state or the commission to perform their respective duties, may review a challenge to any plan adopted by the commission, and shall remand a plan to the commission for further action if the plan fails to comply with the requirements of this constitution, the constitution of the United States, or superseding federal law. In no event shall any body, except the independent redistricting commission acting pursuant to Article II, Sections 6a-6l, promulgate and adopt a redistricting plan or plans for this state.

Article II, Sections 6a-6l are self-executing. If a final court decision holds any part or parts of these sections to be in conflict with the United States constitution or federal law, then these sections shall be implemented to the maximum extent that the United States constitution and federal law permit. Any provision held invalid is severable from the remaining portions of these sections.

Sec. 6k. Independent redistricting commission – Constitutional interpretation and protection of commission functions.

Notwithstanding this constitution, or any prior judicial decision, as of the effective date of the constitutional amendment adding Article II, Sections 6a-6l, for purposes of interpreting this constitutional amendment the people declare that the powers granted to the commission are legislative functions not subject to the control or approval of the legislature, and are exclusively reserved to the commission. The commission, and all of its responsibilities, operations, functions, contractors, consultants, and employees are not subject to change, transfer, reorganization, or reassignment, and shall not be altered or abrogated in any manner whatsoever, by the legislature. No other body shall be established by law to perform functions that are the same or similar to those granted to the commission in this section.

Sec. 6l. Independent redistricting commission – Anti-retaliation protections.

Notwithstanding any other law, an employer shall not discharge, threaten to discharge, intimidate, coerce, or retaliate against any employee because of the employee's membership on the commission or attendance or scheduled attendance at any meeting of the commission.

BE IT FURTHER RESOLVED, that the foregoing be referred to the One Hundred Fourteenth General Assembly and that this resolution proposing such amendment be published in accordance with Article XI, Section 3 of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the House of Representatives is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.